

LEAVE ASSOCIATED WITH LEGAL PROCEEDINGS

This policy addresses the respective leave employees may use as a result of their involvement in legal proceedings. Such proceedings include court and administrative hearings, depositions, and trials, for which employees may appear as parties, witnesses, and jurors. Any exceptions to this policy must be approved by the Chief Human Resources Officer or designee.

Nothing in this Policy would prohibit LCPS from suspending an employee who has been charged by summons, warrant, indictment or information with the commission of a felony; a misdemeanor involving (i) sexual assault as established in Article 7 (§ 18.2-61 et seq.) of Chapter 4 of Title 18.2, (ii) obscenity and related offenses as established in Article 5 (§ 18.2-372 et seq.) of Chapter 8 of Title 18.2, (iii) drugs as established in Article 1 (§ 18.2-247 et seq.) of Chapter 7 of Title 18.2, (iv) moral turpitude, or (v) the physical or sexual abuse or neglect of a child; or an equivalent offense in another state.

A. Definition. For purposes of this policy the term “Leave with Pay” means employees will be charged Jury Duty or Subpoenaed Witness leave, but it will not affect their Annual Leave or Personal Leave balances.

B. Personal Legal Proceedings. Employees who require time off from work to attend legal proceedings for which they or their minor children have been subpoenaed as a witness or to appear in court as a crime victim shall be granted Leave with Pay, except for defendants in criminal cases. Absences to attend personal legal proceedings for which there is no subpoena or summons to court will require use of Personal Leave, Annual Leave, or Leave without Pay.

Paid leave does not apply to civil cases as either a plaintiff, a defendant, or having personal or familial interest in the proceedings.

Criminal defendants, where the criminal matter means either an alleged misdemeanor or felony, regardless of whether they are subpoenaed, must use Personal Leave, Annual Leave or Leave without Pay.

1. Employees have the responsibility to submit a copy of the subpoena or summons to their supervisor immediately upon request to obtain Leave with Pay.

2. An employee’s supervisor may approve either Personal Leave, Annual Leave or Leave without Pay for an employee who must attend personal legal proceedings.

3. Employees subpoenaed in legal proceedings that do not relate to their job-related duties shall not have any adverse personnel action taken against them for their absence from employment due to the subpoena.

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C. Job-Related Legal Proceedings. Employees who require time off from work to attend legal proceedings arising from their LCPS job-related duties will be granted Leave with Pay.

1. Employees have the responsibility to immediately submit a copy of the subpoena or summons to their supervisor upon request to obtain Leave with Pay.
2. Full-time equivalent employees (FTEs) will not be charged leave and will earn their regular salary during contracted days for which they are attending legal proceedings arising from their LCPS job-related duties.
3. Part-time hourly employees will receive their normal pay for the hours they are scheduled to attend job-related legal proceedings. Part-time hourly employees who do not have regularly scheduled hours, such as substitutes, will earn their hourly salary for the hours they are attending job-related legal proceedings.
4. Employees subpoenaed in legal proceedings that relate to their job-related duties shall not have any adverse personnel action taken against them for their absence from employment due to the subpoena.

D. Jury Duty. Full-time equivalent employees who require time off from work to attend Jury Duty will be granted Leave with Pay. An employee shall not have any adverse personnel action taken against them upon being called for Jury Duty due to absence from employment for such service.

1. Employees are responsible for notifying their supervisor immediately after receiving a summons and/or subpoena so adequate coverage may be planned.
2. Upon completion of jury duty, employees must submit certification from the court verifying their jury duty service.
3. Full-time equivalent employees (FTEs) will not be charged leave and will earn their regular salary.
4. Payment for jury duty will remain with the employee.

[Former Policy 7-67]

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Current Revision: 12/13/22

Legal Refs: Code of Virginia, 1950, as amended, §§ [18.2-61](#) et seq., [18.2-247](#) et seq., [18.2-372](#) et seq., [18.2-465](#), [22.1-315](#)